

19STCV33027 19STCV33027

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Case Number: 19STCV33027 Hearing Date: July 15, 2026 Dept: 1

CASE: Jane Doe 21 v. Dr. James Heaps et al.

CASE NO.: 19STCV33027

LEAD CASE NO.: 19STCV20594

MOTION FOR DISCOVERY ORDERS

Moving Party: Defendant the Regents of the University of California (Gibson, Dunn & Crutcher LLP)

Responding Party: Plaintiff Jane Doe 21 (in propria persona)

Ruling: Motion GRANTED in full as more specifically provided below.

This is one of numerous actions brought against Defendants the Regents of the University of California (Regents) and James M. Heaps, M.D. (Mr. Heaps) concerning alleged sexual harassment by Mr. Heaps while working as a gynecologist in private practice and for the University of California Los Angeles (UCLA). Plaintiff Jane Doe 21 (Plaintiff) is in propria persona. The Regents move for the following orders:

- Compelling Plaintiff to execute the protective order governing confidential discovery materials;
- Permitting the Regents to serve certain subpoenas for medical information and overruling Plaintiff's objections thereto;

- Compelling Plaintiff to submit to an independent medical examination (IME) with a psychologist; and
- "If necessary," compelling Plaintiff to provide dates for deposition of herself and her spouse.

Plaintiff filed an untimely opposition, which was not received by the Court until it had already written its tentative ruling. The Court will discuss the points made in the opposition at the hearing.

I. PROTECTIVE ORDER

The Regents request that Plaintiff be compelled to execute the stipulated protective order in the lead case, No. 19STCV20594, because Plaintiff has failed to do so. Per counsel's contemporaneous account of the meet-and-confer (Plack Decl., Ex. 8), Plaintiff was attempting to retain counsel who would sign the order on her behalf. That does not appear to have occurred. To protect the confidentiality of all parties, including parties who are not part of this proceeding between Jane Doe 21 and the Regents, the Court will order that the stipulated protective order (Plack Decl., Ex. 1) shall be applicable to Plaintiff Jane Doe 21 as though she had signed it. (Code Civ. Proc. § 128(a)(5) [Court's inherent power includes power "[t]o control in furtherance of justice, the conduct of...all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto."]) The stipulated protective order shall not become effective as to Jane Doe 21 until notice of this ruling and a copy of the stipulated protective order are served on her and proof of service is filed with this Court, or until she waives notice, whichever occurs first.

II. SUBPOENAS

The Regents have issued two subpoenas to certain medical providers concerning Plaintiff. The names and addresses of the medical providers are redacted even in the records provided to the Court under seal. The Regents must lodge the unredacted subpoenas, which the Court will place under seal consistent with the protective order.

Plaintiff served objections to the subpoenas on the following grounds:

1. Consumer Privacy (1985.3): The subpoena seeks personal consumer information

protected under [Code of Civil Procedure section] 1985.3. Disclosure is prohibited without consumer consent or a court order.

2. Overbroad / Irrelevant: The request for "all records" is overbroad, burdensome, and includes irrelevant materials unrelated to the matter.

3. Many relevant records have previously been produced and provided.

4. Reservation of Rights: We reserve all rights to assert further objections or limitations as necessary.

(Plack Decl., Ex. 4, p. 3.)

The Regents contend that the subpoenas are narrowly tailored to Plaintiff's alleged injuries as described in her fact sheet. (Plack Decl., Ex. 5.) The Court has reviewed the fact sheet and the attachments to the subpoenas describing the requested documents (Plack Decl., Ex. 2-3) and agrees. The objections Plaintiff asserted prior to the motion are not meritorious. The Court's tentative is to overrule the objections and permit the Regents to serve the subpoenas, provided that the Regents lodge the unredacted subpoenas for placement in the file under seal.

III. INDEPENDENT MEDICAL EXAMINATION

In any case in which a plaintiff is seeking recovery for personal injuries, any defendant may demand one physical examination of the plaintiff where: (1) the examination does not include any diagnostic test or procedure that is painful, protracted, or intrusive; and (2) the examination is conducted at a location within 75 miles of the residence of the examinee. (Code Civ. Proc., § 2032.220, subd. (a).) Where any party seeks to obtain discovery by a physical examination other than that described in Section 2032.220, or by a mental examination, the party shall obtain leave of the court. (Code Civ. Proc., § 2032.310, subd. (a).) A motion for an examination shall specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and specialty, if any, of the person or persons who will perform the examination and shall be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2032.310, subd. (b).)

The Court shall grant the motion only for good cause shown. (Code Civ. Proc., §

2032.310, subd. (a).) A showing of good cause generally requires "that the party produce specific facts justifying discovery and that the inquiry be relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence." (Vinson v. Superior Court (1987) 43 Cal.3d 833, 840.)

Plaintiff is seeking recovery for personal injuries of a psychological nature. (See Plack Decl., Ex. 5 [fact sheet], p. 14.) Defendants have retained Dr. Kimberly Tangen. (See Plack Decl., Ex. 7 [Dr. Tangen CV].) The nature of the examination is described in the Regents' proposed order, which is based on a previous proposed stipulation:

- a. Plaintiff will undergo a mental examination on a date agreed to by Plaintiff and Dr. Tangen, commencing at 8:30 a.m., conducted by Dr. Kimberly Tangen, a licensed psychologist with more than 15 years of postgraduate experience in the diagnosis of emotional and mental disorders and a Qualified Medical Evaluator.
- b. Plaintiff's mental examination will take place over one full eight-hour day, and Plaintiff shall be entitled to take reasonable breaks during the examination process.
- c. Aside from Plaintiff and Dr. Tangen, the examination shall be conducted without any other persons being present, although both Dr. Tangen and Plaintiff may audio record the examination as permitted under California Code of Civil Procedure § 2032.530. Any audio recordings shall be provided to all parties to the litigation.
- d. The examination shall take place at a location within 75 miles of Plaintiff's residence.
- e. Dr. Tangen's mental examination of Plaintiff will consist of a standard psychiatric examination that consists of an interview session of questions and answers and the taking of Plaintiff's psychiatric history, including her personal, family, educational, occupational, social, legal, drug, alcohol, medical, and hospitalization history. The examination may also consist of the administration of generally accepted standardized psychological testing at Dr. Tangen's discretion, which will be shared with Plaintiff in advance of the examination.
- f. The examination shall also involve the recording of Plaintiff's stated (1)

history of events leading to the emotional or mental condition claimed to result from the conduct alleged in the above-captioned litigation, (2) history of cognitive or emotional effects from the purported conduct, and (3) present cognitive or emotional status as a result of the purported conduct. In addition, the examination may involve exploration of other potential causes of the emotional or mental condition by examining other aspects of Plaintiff's life that could contribute to her emotional or mental condition, except:

i. Plaintiff is not to be questioned concerning her conversations with her former counsel or any other person affiliated with her former counsel's office.

ii. Plaintiff is not to be questioned concerning the retention or withdrawal of former counsel, the filing of this action, or the amount of monetary damages sought or claimed.

iii. Dr. Tangen agrees to review the transcript of the deposition of Plaintiff in advance of the examination. She may use the deposition transcript as a springboard for her examination but is to make best efforts to avoid asking questions already answered during the deposition.

g. The examination may also include the acquisition and review of any inpatient and/or outpatient records that may exist with respect to Plaintiff's prior treatment for medical, psychiatric, or other disorders.

h. No drugs or medication may be administered or prescribed, and no physical, electronic, or mechanical tests of any kind may be performed.

i. The Regents shall produce to Plaintiff and Defendant James Heaps' counsel the written report of Dr. Tangen within 30 days in keeping with Code of Civil Procedure section 2032.610(a)(1), which requires that "a detailed written report setting out the history, examinations, findings, including the results of all tests made, diagnoses, prognoses, and conclusions of the examiner" be provided to the examined party.

j. Plaintiff and counsel for all parties shall receive the results of all tests conducted (e.g., raw data) and any non-privileged documents created by Dr. Tangen in connection with Plaintiff's examination.

k. Plaintiff will bear full responsibility for any cancellation fee incurred for her failure to cancel her examination six business days prior to the

scheduled examination or her failure to appear at her mental examination as noticed.

(See Proposed Order; see also Plack Decl., Ex. 6 [Proposed Stipulation].)

These conditions are appropriate, and the Court will order them.

IV. DEPOSITION DATES

The Regents state that Plaintiff has not provided dates of availability for her and her spouse's deposition. As the Regents note, Plaintiff has not yet responded to the Regents concerning deposition dates. To avoid the need for further motion practice, the Court will order that Plaintiff provide dates of availability for both her and her spouse's deposition within 60 days of the entry of this order.

CONCLUSION

For the foregoing reasons, the Court's tentative is to GRANT the motion in full as provided above. The Regents are to lodge a revised proposed order in accordance with this ruling, as well as to lodge the unredacted subpoenas to which Exhibits 2 and 3 pertain, and to give notice.